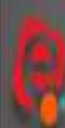


Subject: **LAW**

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Paper : **Advanced Jurisprudence**

Module : **Indian Conception of Law-Rta and Dharma**



ज्ञान-विज्ञान विमुक्तये



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Description of Module

Subject Name	Law
Paper Name	Jurisprudence
Module Name/Title	Indian Conceptions of Law-Rta, Dharma
Module ID	26
Prerequisites	Idea of natural law, idea of ancient Indian texts.
Objectives	By comprehending the material given in this lesson, you will be able to a) Discern how the Indian Conception of law is based on Rta (the cosmic order) and Dharma and their correlation b) Trace how Rta is unique and distinct from Dharma c) Understand and discover the origin of law. d) Rta is different from the western legal thought.
Keywords	Rta, Dharma, Satya, Sruti, Smriti, Rigveda, Law and Morality, Justice.



INTRODUCTION

The Indian conception of law unlike the western legal thought, owes its origin to **Rta, the cosmic order** and **Dharma, the rule of law and life, to uphold and sustain**. It is the philosophy that a man must grow into a full human being through ethical and moral standards acceptable to the community free from coercion. This philosophy of the relevance of Rta and dharma form the basic source of all laws. Rta is a **Rigvedic** concept. The Rigveda is the oldest record of intellectual excellence. The **Srutis** (what is revealed or heard) and **Smritis** (what is retold remembered and written) **Dharma Sutras** and **Dharma Shastras** form the primary source of law and they are of divine origin. They are immemorial, eternal and timeless. Indian legal thinkers believe that dharma is beyond law and the process of determining what is good is self oriented than coercive. During the vedic age there were three stages identified in the evolution of the concept of law. The early vedic period which is correlated to the concept of Rta, the middle and later vedic period is correlated to Satya and the post vedic period is correlated to Dharma.

CONCEPT OF RTA

The word Rta is derived from the the root '**ri**' meaning to move. It signifies the dynamic principle which is inherent in the universe which is defined as that which moves and changes or the natural order. Rta is the vedic legal concept which can be described as the law of nature. It may be said that the vedic thinkers were deeply impressed by the forces and powers of nature like the sun, the moon, the rains, the storms and realised this fact that much earlier to the Greeks and the Romans. The nature of law in the vedic ages was described as Rta for universal order and harmony.

Thus Rta is a concept which asserts that world is an order, a natural order and integrity of all forms of life and ecological systems. It is perceived and translated as the order, harmony and law behind the manifest world. Rta can be understood as the unending symphony of the cosmic order. It is the cosmic order consisting of the laws that govern the functioning of the manifested universe. Rta is the order through which the universal intelligence unfolds in action whether it be the creation, sustenance and destruction. Rta was understood by the



Rigvedic sages in the sense of order and harmony which generated peace and served as a basis for moral law which brings perfection in life.¹ The Vedic sages identified the forces of nature and began to posit a God for each of these forces and the powers of the universe e.g., **Mitra** (agent of bright sky and day) and **Varuna** (the agent of dark sky and evening) **Surya** (the agent of sun). It is the God Varuna who was very important and extolled by vedic sages. He is considered in the Vedas as the apostle of justice, virtue and righteousness in the universe. He is the chief guardian of Rta in Vedas.²

Thus, Rta is described as the fundamental and inherent law of nature (RV4.24.8-9).

It is the controlling and the sustaining power in nature, Rta ordains the laws of the physical worlds; regulates the laws of birth, growth and decay in nature (RV 2.28.4).

Rta controls, balances all natural forces in environment. Rta also means moral order. Further another distinct feature of the concept of Rta apart from being known as the true natural phenomenon, is that Rta emphasises that law also must be certain, firm, and immutable and that the purpose of law is ethical in nature. The cosmic phenomenon Rta has certain aspects.

ASPECTS OF Rta

According to P.V.Kane, Rta means –

- a) The ‘Course of nature’ or the regular and general order in the cosmos;
- b) The correct and the ordered way of the cult of the Gods; and
- c) It means the moral conduct of man.

Thus, the three aspects of concept of Rta furnishes a law that is imperative and operates independently. Secondly, the vedic sacrifices which were to be observed meticulously. Thirdly, Rta in the life of the individual became a force to motivate him to act in conformity with the universal principle of truth.

¹ S D Sharma, Administration of Justice, Harman Publishing House, New Delhi, (1988) p 9

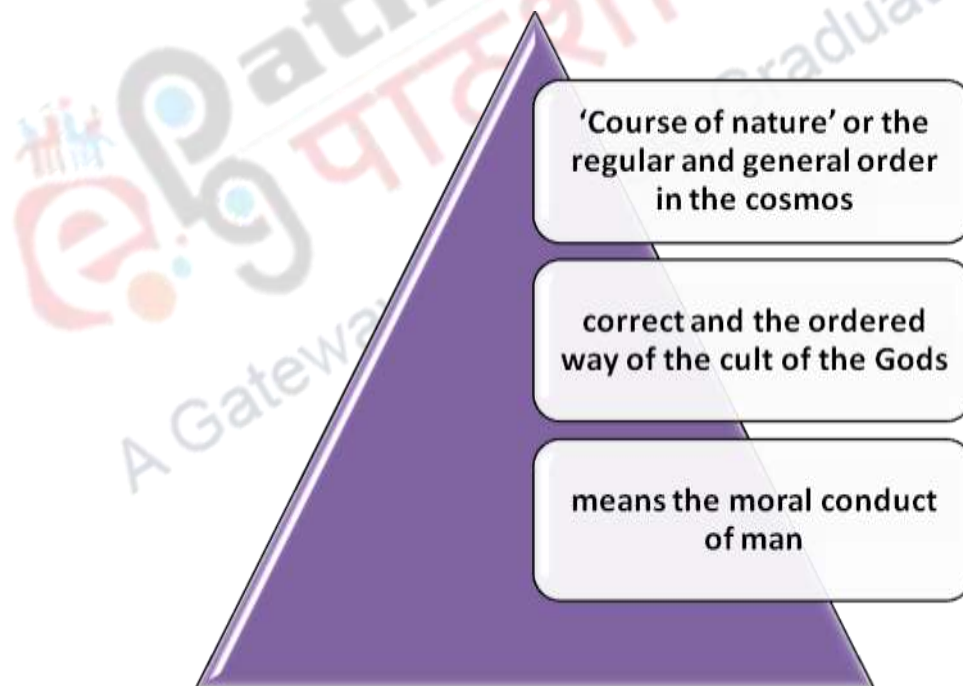
² Dr. S. N. Dhyani, Fundamentals of Jurisprudence The Indian Approach, Central Law Agency, Allahabad (2004) p 108

Rta actually emphasises on harmonious co-existence. There is an element of balance between the subtle world called **Prakruti** and the mundane world called the **Purusha**. Thus, there is mantra which concerns itself with the supreme course of nature and the **kriya** that is meticulous performance of worldly duties and enjoins and motivates an individual to follow this universal principle of harmonious co-existence.

According to Dr. Radhakrishnan, Rta literally means **“the course of things”**. It stands for law in general and immanence or fountain of justice. Rta denotes the order of the world³.

Everything that is ordered in the universe has Rta for its principle. God Varuna is considered as the trustee of Rta. It was he who fixed the laws of physical universe. Varuna is the upholder of physical and moral order.

Therefore, Rta stands for external law where in the imperativeness is inherent which impose obligatory conduct and Rta is personified as the divine command. The relevance of Rta and its relevance to justice can be understood thus:



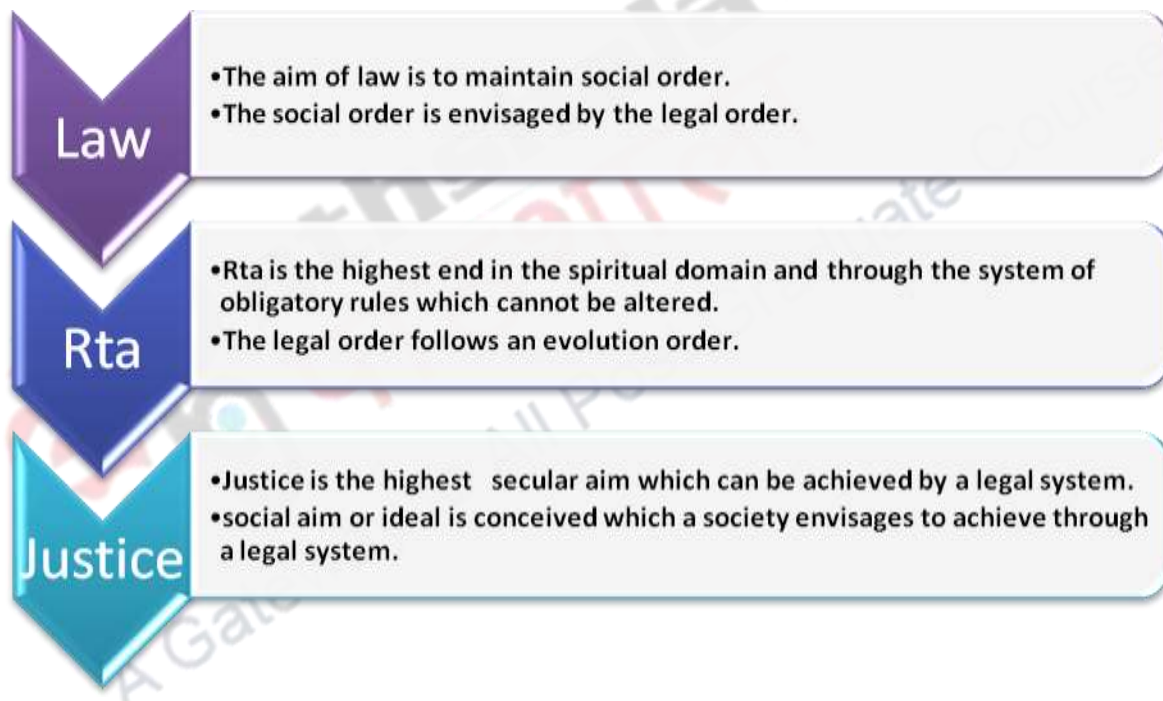
Aspects of Rta

³ S. Radha Krishnan, *Indian Philosophy* (1962) p 78-79



Rta – ITS RELEVANCE TO JUSTICE

The conception of justice and the concept of a legal system owe their origin to the concept of Rta. The analogy follows thus: The aim of law is to maintain social order. The social order is envisaged by the legal order. The legal order follows an evolution order through which a social aim or ideal is conceived which a society envisages to achieve through a legal system. It comes down to the fact that Rta is the highest end in the spiritual domain and through the system of obligatory rules which cannot be altered. Justice is the highest secular aim which can be achieved by a legal system. Thus Rta has a direct bearing and contributed to the idea of justice in the social order. But then what is the correlation and significance of Dharma in the periphery of law?



Rta and its relevance to Justice

CONCEPT OF DHARMA

The Indian way of life is characterised by an all pervading law known as Dharma. As stated earlier, the words Rta, Satya and Dharma are often used synonymously yet these words have



a significance in their premises. The word Dharma is closely associated with Rta. However Dharma is the right way that sustains the order and harmony in life. It is to be borne in mind that dharma is a rule of life and during the Dharma Shashtra period gradually Dharma came to be identified with justice, a virtue, truth in the context of legal philosophy of Dharma.

Dharma is derived from the root '**Dhri**' meaning to hold. It is said that Dharma holds, upholds, supports, sustains, retains, conserves, preserves observes and promotes human good, human happiness, human dignity and develops relationship between law and morality and law and nature. Thus dharma is to be understood as universal in nature as it aspires the human good, human happiness, human dignity, human flourishing of the mankind. Dharma is perceived as righteous conduct in every sphere of human activity. Dharma is not religion. It is applicable irrespective of any religion. The sanctity of dharma lies in the fact that it unites humanity unlike religion which divides humanity. Dharma is preventive in nature-laying down a code of righteous conduct which prevents an individual from violating the rules (dharma) to ensure peace and happiness to the individuals and the human society.

It is to be borne in mind that the post vedic period emphasised on dharma and Manu Smrithi indicated the final test of good conscience i.e., what is agreeable to the soul or conscience of an individual is the surest test as to what is good or what is bad meaning **dharma** and **adharma**.

At this juncture, it would be appropriate to mention the role of Manu in protecting Dharma through his Code called as Manu's Code.



Dharma includes the totality of rules governing the social order including the function of the legal order.

Dharma consists positive ideals and social harmony.

Dharma embraces the relationship between law and morality .

Concept of Dharma

A BRIEF OVERVIEW OF THE ROLE OF MANU'S CODE –

Manu is the giver of law, in the form of Dharma was accepted as the final authority. The description of civil and criminal rights and their remedies suited to the needs of the time are dealt with in his Code. He gave 18 titles of rights and remedies. These remedies clearly show that even during early societies there were adequate provisions of the law for the protection of rights and liabilities of people.

According to Manu, law is an order of human behaviour. This ordering of human relations is absolutely valid and just, as it emanated from the will of God, and it has regulated the behaviour of men in a way satisfactory to all. The rights and duties of man, established by this law are innate and inborn in him because they are implanted by nature and not imposed from outside.

FUNDAMENTALS OF INDIAN/ HINDU LEGAL THEORY

The Hindu legal thinkers believe that –



- Dharma includes the totality of rules governing the social order.
- Dharma implies much more than law. It embodies in its meaning what may be called law in its widest sense including the function of the legal order.
- Dharma consists of positive ideals and social harmony. It is significant to note that dharma never recognises conflict between individual and society.

THE FIVE FUNDAMENTAL RULES OF DHARMA

To secure peace and happiness and to avoid causing civil or criminal injury to others the five rules of dharma are of utmost importance and to be followed by all.

“Ahimsaa satyamasteyam shouchamindriyanigraha

Yetam samasikam dharma chaturvarnye bravenmanuhu” (63)

- 1) Non violence (**Ahimsa**) – Not indulging in violence against any one. Not inflicting mental or physical injury on fellow human beings
- 2) Truthfulness (**Satyam**) – Truthful and honest in speech and action
- 3) Non stealing (**Asteyam**) – not to acquire money and wealth by illegal means and immoral methods
- 4) Cleanliness (**Soucham**) – Cleanliness of thought in mind, words spoken and action performed or conformity of thought word and deed
- 5) Control of senses (**Indriyanigraha**) – Control of senses by restraining them from indulging in wrongful actions.

These being the five eternal values and the life principles are to be followed by the people.

Thus, Dharma in the ethical moral- social sense is the foundation of order, stability and regularity to which human beings abide by. It can be said that What Rta is to the Cosmic territory, Dharma relates to the ‘social law’ which imposes duty, obligation and customs of all people to sustain the social order.



The Five Fundamental Rules of Dharma

MYRIAD FACETS OF DHARMA

Justice M. Ramjois⁴ sums up various manifested aspects of Dharma. He says – “the word Dharma has such wide meaning as to cover rules concerning all matters, such as spiritual, moral, and personal as also civil, criminal and constitutional law, it gives the precise meaning depending upon the context in which it is used. For instance, when the word Dharma is used to indicate the giving of one’s wealth for a public purpose, it means charity; when it is referred to the giving of dharma to a beggar, it means giving of alms; when it is said that in a given case Dharma is in favour of the plaintiff, it means law or justice is in his favour; when it is said that it is the dharma of the sons to look after their aged parents, it means duty; when it is said that it is the Dharma of a debtor to repay the debt to the creditor, it means a legal as well as pious obligation. Similarly, when the word Dharma is used in the context of civil rights (civil law), it means that is enforceable by the state; in the case of criminal offence (in

⁴K. L. Bhatia, *Concept of Dharma corpus juris of law and morality a comparative study of legal cosmology* (Foreword by Justice Lahoti), Deep and Deep Publications, New Delhi (2010)



criminal Law) it means breach of duty which is punishable by the state; and when Dharma is used in the context of duties and powers of the King, it means Constitutional law (Rajdharmā). Likewise, when it is said that Dharmarajya is necessary for the peace and prosperity of the people and for establishing an egalitarian society, the word Dharma in the context of the word Rajya only means law, and Dharmarajya means rule of Law and not rule of Religion or a theocratic State. The concept of Dharma in the Indian perspective has individual, social and global relevance. The universality of Dharma manifests as Dharma as law (**Vidhi**) and punishment (**Danda**).

Manu Smṛiti asserts that there is a direct connection between law (Vidhi) and punishment (Danda). The validity of all laws has their conformity with the standards of equity coupled with sanction (Danda). It means that it has resemblance to law and morality. “Dharma is the law conceptually the relation of law, life and morality. The copyright of Dharma belongs to the creator of God who himself disseminated to the human beings to assimilate it for the follow up action with *Nyaya* (justice) and *yukti* (natural reason, logic, rationality and equity).”

When translated into the context – dharma means sustainability, to conserve and protect from environmental erosion and global warming, to retain the values, to preserve the cultural values and heritage, to observe and promote human good and, wellbeing of human beings, human happiness, human dignity, human rights and to develop. It is the creation of the world order (**Cosmos**) called as law. It is the eternal law of nature and the moral law governing the mankind.

The words **Rajdharmā**, **Rajya Dharma**, **Rajasasana**, **Rajya Shastra**, **Rajyaniti Shastra** lay down the principles of administration of State. They relate to the government, good governance sustainable governance which aim at securing all round prosperity of the society

The third aspect of dharma is concerned with the persons or human beings, the humanitarian behaviour by the human beings for dharma is meant for humans to be humane.

The other aspect of dharma spells about the human dignity and the vedic tradition emphasises on removing imbalances in human nature the human beings develops his personality which is sine qua non of human dignity.



Most importantly the role of dharma in the Information technology and knowledge age is to be acknowledged. Dharma emphasises that in the pursuit of information and knowledge there must not be territorial barriers or barriers of country or creed or traditions

“Aano bhadra kratvo yantoo visvata” means let noble thoughts come to us from every side.

“Tamso ma jyotirmaya” means lead from darkness to light.

“Om sanghachhuvam, samvadhvam” means let us sit together, discuss together, share with each other together, so that information is assimilated and disseminated for the benefit of all humanity. The same theme is found in the modern polity call it as WTO or TRIPS for good governance or sustainable governance.

The globally identified principles of good governance are: all people are neighbours; build partnerships; commitment to care for others to the higher quality of behaviour among human beings; democracy and equality; environmental protection; fundamental values; cooperative global approach, etc.

The modern concepts of democracy i.e., rule by the people, of the people and for the people have their roots in the vedic concept of Raj dharma and the rajya dharma wherein it categorically states that the State and its functionaries had to act in accordance with them. Thus dharma stands as a basis for living a good life in a good society. Finally dharma embraces the relationship between law and morality.

SUMMARY

Thus, ancient Indians evolved codes of Laws based on higher values and ideals which governed in an integrated manner all civil, religious and other actions of men in society – be it king or his subject. Dharma within its sphere has the values, duties, obligations morals ethics to be observed by the human beings for the social good which exactly the law aims for administering justice.



UNIT – END QUESTIONS

1. Critically examine the concept of law in the Indian Perspective?
2. Distinguish the concepts Rta- Satya and Dharma?
3. Critically evaluate the dichotomy between Indian Perception of law and western thought?

